



FORECLOSURE

Understanding Your Options

A free guide to help you understand your foreclosure options, protect your home, and make the best decision for your family.

You have options. We're here to help you find the right one.

MEET YOUR NEIGHBOR

I'm Dave Marsh

If you're reading this guide, you may be facing one of the most stressful situations a homeowner can experience. **I want you to know: you are not alone, and you have options.**



Dave Marsh Owner | Finish Line Home
Buyers

I moved to Florida years ago and quickly fell in love with this state and its communities. But as I got deeper into real estate, I kept seeing something that didn't sit right with me — homeowners facing foreclosure who had no idea they had other options. Banks weren't telling them. No one was helping them. They were just left to figure it out alone. So I built Finish Line Home Buyers around a simple idea: when you reach out, you talk directly to me — not a call center, not a salesperson. Just an experienced investor from Central Florida who genuinely wants to help you find the best path forward, whether that's keeping your home, selling it, or working something out with your bank. No pressure. No judgment. Just honest help.

Talk to me directly: 727.273.7157

CHAPTER 01

What Is Foreclosure?

Foreclosure is a legal process where your mortgage lender attempts to recover the balance of a loan from a borrower who has stopped making payments. In simpler terms: if you fall behind on your mortgage, the bank can take your home and sell it to cover the debt.

Key Facts About Foreclosure in Florida

- ✓ **Judicial State**
Florida is a judicial foreclosure state, meaning the lender must go through the courts to foreclose. This process is typically longer than non-judicial states.
- ✓ **Timeline**
The process typically takes 6–18 months from the first missed payment to a foreclosure sale, depending on court backlogs and the lender.
- ✓ **Right to Cure**
You generally have the right to bring your mortgage current before the final judgment is entered, stopping the foreclosure.
- ✓ **Credit Impact**
A foreclosure stays on your credit report for 7 years and can drop your score by 100–150 points.

The most important thing to remember:

Foreclosure is NOT inevitable. At every stage, you have options — and we are here to help you explore them.

CHAPTER 02

The Foreclosure Timeline

How it works in Florida

Day 1–30 Missed Payment

After your first missed payment, your lender will contact you. At this stage, you can often resolve the issue with a single payment.

Day 30–90 Notice of Default / Demand Letter

If payments continue to be missed, the lender sends a formal notice of default and may send a demand (acceleration) letter requiring full payment.

Day 90–120+ Lis Pendens Filed

The lender files a Lis Pendens with the county clerk, officially starting the court process. This is recorded in the public record.

Month 3–9 Foreclosure Lawsuit Served

You are served with a foreclosure lawsuit. You have 20 days to respond. This is a critical window — acting now can change the outcome.

Month 6–18+ Final Judgment & Sale Date

If no resolution is reached, a judge enters a final judgment. A Certificate of Sale is issued after the auction, typically held online through the county.

Sale Day Clerk's Sale (Auction)

The property is sold at a public online auction. In most Florida counties, sales are conducted at Realauction.com or the county clerk's website. Once the certificate of title is issued, you must vacate.

The earlier you act, the more options you have.

Don't wait until the sale date. Call or text us today: 727.273.7157

Keep Your Home

If keeping your home is your goal, there are several proven strategies that can help you get back on track. The key is acting quickly — the sooner you explore these options, the better your chances of success.

Loan Modification

Work with your lender to permanently change the terms of your mortgage. This could mean a lower interest rate, extended loan term, or reduced principal balance. Many lenders prefer this over foreclosure because it costs them less.

Best if you can afford a lower payment but not your current one.

Forbearance Agreement

Your lender temporarily reduces or pauses your payments for a set period (usually 3–6 months). After the forbearance period, you'll need to catch up on missed payments through a repayment plan.

Best if you're dealing with a temporary hardship (job loss, medical issue).

Reinstatement

Pay the full amount you owe in back payments, plus any fees, in one lump sum. This immediately stops the foreclosure process and brings your mortgage current.

Best if you've come into money (tax refund, insurance payout, family help).

Repayment Plan

Your lender adds a portion of your past-due amount to each future payment over a set period until you're caught up. Your payments will be higher than normal temporarily.

Best if you're back on your feet and can handle slightly higher payments.

Not sure which strategy is right for you?

We can help you figure out the best path. Call or text 727.273.7157.

Sell & Move Forward

Sometimes the best decision is to sell your home and start fresh. Selling before foreclosure protects your credit, puts cash in your pocket, and lets **you** control the timeline — not the bank. Here's what you need to know.

Traditional Sale

- List with a real estate agent
- Requires repairs & staging
- Takes 60–90+ days to close
- 6% in agent commissions
- Buyer may back out
- Inspections & appraisals
- Works IF you have enough time

Cash Sale to Us

- No agents, no commissions
- Sell as-is — no repairs needed
- Close in as little as 14 days
- Zero fees or hidden costs
- Guaranteed close, no fall-through
- No inspections required
- Perfect when time is critical

Why Selling Before Foreclosure Makes Sense

✓ Protect Your Credit

A voluntary sale has far less impact on your credit score than a foreclosure. You could qualify to buy again in as little as 2 years vs. 7.

✓ Walk Away with Cash

Depending on your equity, you could receive cash at closing to help you start fresh — money for a deposit, moving costs, or savings.

✓ Control Your Timeline

You choose the closing date that works for you. No sheriff's sale, no auction, no surprises.

✓ Avoid Public Record

A foreclosure becomes part of the public court record in Florida. A private sale keeps your financial situation confidential.

Negotiate with the Bank

You may have more leverage than you think. Banks lose an average of \$50,000–\$60,000 on every foreclosure — so they're often willing to negotiate. Here are the most common arrangements you can pursue.

Short Sale

If you owe more than your home is worth, a short sale allows you to sell for less than the mortgage balance with the bank's approval. The bank forgives the difference. This is far less damaging to your credit than a foreclosure.

How we help: We handle the entire short sale process — paperwork, bank negotiations, and closing.

Deed in Lieu of Foreclosure

You voluntarily transfer the property deed back to the bank. In exchange, the bank releases you from the mortgage. This avoids the formal court process entirely.

How we help: We can help you negotiate the terms with your lender to protect your interests.

Bankruptcy Protection

Filing Chapter 13 bankruptcy can immediately halt foreclosure through an "automatic stay." This gives you time to reorganize your debts and create a repayment plan over 3–5 years.

How we help: We can connect you with a local bankruptcy attorney for a free consultation.

Important Note:

We are not attorneys and this is not legal advice. However, we work with trusted Central Florida professionals who can guide you through every legal aspect.

MYTH VS. REALITY

Common Myths About Foreclosure

MYTH "I've already missed payments — it's too late."

REALITY It's almost never too late. Even after a Lis Pendens has been filed, you can still pursue options like reinstatement, short sale, or a cash sale. The key is acting NOW.

MYTH "The bank wants to take my house."

REALITY Banks actually lose money on foreclosures — an average of \$50,000+ per property. They'd much rather work out a deal. Foreclosure is their last resort, not their first choice.

MYTH "I'll never be able to buy a home again."

REALITY With a foreclosure on your record, you may wait 7 years. But with a voluntary sale or short sale, you could qualify for a new mortgage in as little as 2–3 years.

MYTH "I need to hire an expensive attorney."

REALITY While legal advice is valuable, many solutions (like selling your home or negotiating a forbearance) don't require an attorney. We help homeowners navigate these options at no cost.

MYTH "If I ignore it, maybe it'll work itself out."

REALITY This is the most dangerous myth of all. Foreclosure doesn't stop on its own. Every day you wait reduces your options. The single best thing you can do is take action today.

KNOW YOUR RIGHTS

Your Rights as a Florida Homeowner

Florida law provides several protections for homeowners facing foreclosure. Understanding your rights is the first step to protecting yourself and your family.

- **Right to Notice**

Your lender must provide proper written notice before beginning any foreclosure action. In Florida, this typically includes a 30-day notice to cure before a lawsuit can be filed.

- **Right to Cure (Reinstate)**

You generally have the right to reinstate your mortgage by paying all past-due amounts plus fees, stopping the foreclosure before final judgment.

- **Right to Surplus Funds**

If your home sells at auction for more than what you owe, you are entitled to the surplus funds. Don't leave money on the table.

- **Right to Challenge the Foreclosure**

Because Florida is a judicial foreclosure state, you have the right to respond to the lawsuit and raise defenses in court. Improper notice and procedural errors are common grounds.

- **Right to Occupy Until Sale**

You have the right to remain in your home until a Certificate of Title is issued after the foreclosure sale. No one can force you out before that point.

- **Servicemembers Civil Relief Act**

If you or your spouse are active duty military, the SCRA provides additional protections including a cap on mortgage interest rates and the ability to request a stay of proceedings.

Questions about your rights? Call or text us: 727.273.7157

FAQ

Frequently Asked Questions

Q: How quickly can you buy my house?

We can close in as little as 14 days. If you need more time, we'll work with your schedule. You choose the closing date.

Q: Will I owe anything after the sale?

In most cases, no. We handle all closing costs. If you owe more than the home is worth, we can help negotiate a short sale with your bank.

Q: What condition does my house need to be in?

Any condition. We buy houses as-is — no cleaning, no staging required. Leave whatever you don't want and we'll handle it.

Q: Will this affect my credit?

Selling your home before foreclosure is significantly better for your credit than letting the foreclosure go through.

Q: Is there really no cost to me?

Correct. There are zero fees, zero commissions, and zero closing costs to you. We make our money when we renovate and resell — not by charging you.

Q: What if I'm behind on property taxes too?

We handle that. Back taxes, liens, code violations — we take care of everything at closing. You walk away free and clear.

Q: Can you help if I've already received a Lis Pendens notice?

Yes. Even at this stage, you have options. A cash sale can close faster than the foreclosure process. Call or text us immediately at 727.273.7157.

Q: What if I just need more time to figure things out?

That's what this guide is for. We're not here to pressure you. Take your time, read through your options, and call us when you're ready.

Q: Are you actually buying my house, or just trying to sell the contract?

We buy houses directly with our own private funds. That means no middlemen, no last-minute fall-throughs, and no surprises. When we make you an offer, we have the capital to close the deal ourselves.

HOW WE CAN HELP

Three Ways We Can Help You Today

No matter where you are in the foreclosure process, we have a solution. Here's how Finish Line Home Buyers can help you take the next step.

01**Help You Keep Your Home**

We'll review your situation and connect you with the right resources — whether that's a loan modification specialist, housing counselor, or bankruptcy attorney. If keeping your home is possible, we'll help you find the path.

02**Buy Your Home & Help You Move**

If selling makes the most sense, we'll give you a fair cash offer within 24 hours. No repairs, no commissions, no hassle. Pick your closing date and we'll handle the rest. You walk away with cash in hand.

03**Negotiate with Your Bank**

If you owe more than your home is worth, we'll negotiate a short sale with your lender on your behalf. We handle the paperwork, the phone calls, and the back-and-forth. You just focus on your next chapter.

Ready to talk? Call or text 727.273.7157

Or visit finishlinehomebuyers.com for your free, no-obligation offer.

OUR PROCESS

How It Works

Our simple 4-step process to help you move forward

1**Call or Text Us Directly**

Reach out to us at 727.273.7157 or fill out the form at finishlinehomebuyers.com. Tell us about your situation — there's no pressure and everything is confidential.

Takes about 5 minutes

2**We'll Discuss Your Options**

We'll connect with you (in person or by phone) to understand your situation and walk through all your options — keeping your home, selling, or negotiating with the bank.

Usually within 24 hours

3**Choose Your Best Path**

Based on your situation, you decide which option is right for you. If selling makes sense, we'll present a fair cash offer. If keeping your home is possible, we'll connect you with the right resources.

No obligation, no pressure

4**We Handle Everything**

Once you decide, we take care of all the details — paperwork, coordination with your lender, closing logistics. You just focus on your family and your future.

Close on your timeline

LOCAL RESOURCES

Central Florida Resources

Free and low-cost help available to you right now

211 Florida

Dial 2-1-1 for immediate connection to local assistance programs including emergency housing, utility help, and financial counseling.

Florida Housing Finance Corporation (Florida Housing)

Offers homeowner assistance programs including the Florida Homeowner Assistance Fund. Visit floridahousing.org or call (850) 488-4197.

Hernando County Clerk of Court (foreclosure filings)

To check the status of a foreclosure case, liens, or public court records. Visit hernandoclerk.com or call (352) 754-4201.

Legal Aid Society of the Orange County Bar Association

Free legal assistance for qualifying homeowners facing foreclosure in Central Florida. Call (407) 841-8310 for intake.

Hernando County Tax Collector

For questions about property taxes, tax certificates, or payment plans. Visit hernandotax.us or call (352) 754-4180.

HUD-Approved Housing Counseling

Free, government-backed counseling to help you understand your options. Visit hud.gov or call (800) 569-4287 to find a counselor near you.

Florida Bar Lawyer Referral Service

If you need an attorney, the Florida Bar can refer you to a foreclosure defense attorney in your area. Call (800) 342-8011.

Resource information is current as of 2026. Please verify details before visiting.



FINISH LINE HOME BUYERS

You Have Options. Let Us Help.

Whether you want to keep your home, sell it, or negotiate with your bank — we're here for you. Every conversation is free and confidential.

Locally Owned | Serving Central Florida
Valyrian Holdings LLC | Sigma Cash Offer LLC